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ALCOHOLIC BEVERAGE PROGRAM

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This publication implements Air Force Policy Directive (AFPD) 34-1, *Air Force Services*, specifically those addressed by Department of Defense Instruction (DoDI) 1015.10, *Military Morale, Welfare, and Recreation (MWR) Programs*, Enclosure 9. This publication provides guidance on the Air Force (AF) policy for procuring, controlling, selling, and consuming alcoholic beverages. It has been developed in collaboration with the Deputy Chief of Staff for Manpower, Personnel and Services (AF/A1), the Chief of the Air Force Reserve (AF/RE), and the Director of the Air National Guard (NGB/CF). This instruction applies to all Regular Air Force, Air Force Reserve, and Air National Guard members as well as all AF civilian, contracted personnel and their adult guests who sell, serve, purchase, or consume alcohol on AF installations or aircraft. **Failure to observe the prohibitions and mandatory provisions in paragraphs 3.1.6 and 3.1.8 of this publication by military members is a violation of 10 USC 892, Article 92 of the Uniform Code of Military Justice (UCMJ).** Ensure that all records created as a result of

processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of in accordance with Air Force Records Information Management System Records Disposition Schedule. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using an AF Form 847, *Recommendation for Change of Publication,* from the field through the appropriate functional chain of command. This publication may be supplemented at any level, but all supplements that directly implement this publication must be routed to the OPR for coordination, and all major command level supplements must be approved by the Human Resource Management Strategic Board prior to certification and approval. The authorities to waive wing/unit-level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Air Force Instruction (AFI) 33-360, *Publications and Forms Management*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the requestors commander for non-tiered compliance items.

(USAFA) This publication implements Air Force Instruction (AFI) 34-219, *Alcoholic Beverage Program*, is supplemented as follows: The purpose of the publication is to establish policies and procedures for the sale and serving of alcoholic beverages within the confines of the United States Air Force Academy (USAFA). This supplement applies to all personnel that procure, sell, serve, or consume alcoholic beverages on USAFA. It applies to all areas where alcoholic beverages are sold, served, or consumed. Alcohol may only be consumed in government facilities, at 10th Air Base Wing Commander (10 ABW/CC) approved times and locations, ensuring mission and unit readiness are not negatively affected. Alcohol consumption within squadron or unit government facilities is permitted for Airmen and their guests during 10th Mission Support Group Commander (10 MSG/CC) or Mission Element (ME) approved sessions, celebrations or social events. Approval authority may be delegated to the deputy commander or deputy director. This publication does not apply to Air Force Reserve Command (AFRC) units and the Air National Guard (ANG).

(USAFA) Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using Air Force (AF) Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) Air Force Instruction 33-322, *Records Management and Information Governance Program,* and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS).

SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. Major changes include provisions for Defense Commissary Agency (DeCA) to sell beer and wine, reorganizes the AFI to be compliant with AFI 33-360, and adds new roles and responsibilities.

(USAFA) This revision updates the opening paragraph, realigns supplemental paragraphs with the applicable AFI from 30 April 2019, removes obsolete or duplicate activities, adds locations in **Attachment 2**, and includes a new **Attachment 3** (with necessary publishing requirements) and new **Attachment 4**, *Mission Element Commander Approval Letter*.

Chapter 1

PROGRAM OVERVIEW

1.1. This instruction provides guidance for all personnel that procure, sell, serve, or consume alcoholic beverages on AF installations or aircraft and empowers commanders with the authority to permit the consumption of alcoholic beverages by Airmen (regular AF, Air Reserve Component, Department of Defense (DoD) civilians, and DoD contractors) and adult guests on a limited basis.

1.1. **(USAFA)** This instruction provides guidance for all personnel that procure, sell, serve, or consume alcoholic beverages on USAFA.

1.2. Commanders must: Deglamorize behavior associated with excessive drinking and ensure all personnel avoid inappropriate and disorderly conduct. **(T-0).**

1.3. It is the intent of this instruction to ensure bystander Airmen are: Not negatively affected by alcohol consumption and the unit does not become vulnerable to an unprofessional or hostile work environment. Commanders of all units ensure that Airmen never feel express or implied pressure to consume alcohol and that non-alcoholic beverage options are available at all official social functions. **(T-1)**. Moreover, commanders will ensure their team possesses a culture of professionalism where alcohol is not consumed during the performance of official duties. **(T-1).**

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. Headquarters Air Force Director of Services (AF/A1S). Issues policy, guidance and instructions on controlling, selling, procuring, and consuming alcoholic beverages.

2.2. Air Force Services Activity (AFSVC). Provides procedural guidance for controlling, selling, procuring, and using alcoholic beverages.

2.3. Major Command commanders, through their Force Support staffs: Enforce this instruction.

2.4. The Army and Air Force Exchange Services (AAFES). Oversees all Class Six packaged beverage operations on AF installations in accordance with Air Force Joint Instruction (AFJI) 34-203, *Board of Directors, Army and Air Force Exchange Service (AAFES)*. Additionally, AAFES provides wholesale alcoholic beverages to authorized Force Support programs.

2.5. DECA. Oversees the sale of beer and wine within their stores.

2.6. Installation commanders. Oversee installation alcoholic beverage programs and enforce this instruction. In accordance with AFI 1-2, *Commander's Responsibilities,* and this instruction, commanders are responsible for ensuring healthy and professional work environments. Installation commanders:

2.6. **(USAFA)** The 10th Force Support Squadron (10 FSS) is the POC and has the overall regulatory oversight of this AFI for the 10 ABW and USAFA.

2.6.1. Are encouraged to work with community partners on responsible alcohol sales and service practices and bystander intervention training for alcohol servers at establishments frequented by Airmen. **EXCEPTION**: AAFES must oversee alcohol distribution and sales for all AAFES Class Six operations.

2.6.2. Will supplement this instruction accounting for the installation's mission, morale, areas where alcohol is served, deglamorization and additional guidance ensuring consumption of alcohol will not negatively impact the installation's mission **(T-1)**.

2.6.3. Ensure the Force Support commander or director holds annual training programs, as detailed in **paragraph 3.5**, to familiarize beverage supervisors and servers with AF alcohol policies. **(T-1)**

2.6.4. Ensures implementation of the AF alcohol deglamorization program. **(T-0).** Refer to **paragraph 3.7**

2.7. The Vice President of the AAFES region along with the AFSVC commander. Shall settle disputes between the installation commander and AAFES. **(T-1).** See AFI 34-211(I), *Army and Air Force Exchange Service General Policies.*

2.8. Installation Violence Prevention Integrators (VPI) will: Assist with facilitation of bystander intervention training. Refer to **paragraph 3.5**

2.9. Squadron or unit commanders and the appropriate concerned leadership team: Remain primarily responsible for the safety of all Airmen and their adult guests who attend squadron or unit events where alcoholic beverages are served. Moreover, Airmen and adult guests

are expected to conduct themselves in a professional manner and exercise proper decorum at all times during squadron or unit functions, especially while consuming alcoholic beverages on the installation.

Chapter 3

REQUIREMENTS OF THE ALCOHOLIC BEVERAGE PROGRAM

3.1. General Requirements.

3.1.1. Alcohol must only be consumed in government facilities at approved times and locations, ensuring mission and unit readiness are not negatively affected. Refer to **paragraph 4.2** **(T-1).** Alcohol will not be consumed by individuals in the performance of official duties, except when attending, or speaking at, a social gathering as part of official duties **(T-1).**

3.1.2. Alcohol consumption within squadron or unit government facilities is permitted for Airmen and their adult guests during commander approved sessions, celebrations, or social events. Alcohol consumption at periodic or recurring command social functions should not become a routine expectation. Refer to **paragraphs 4.3-4.5**

3.1.3. Airmen and their adult guests should maintain professional relationships and proper decorum at all times while consuming alcohol in government facilities.

3.1.4. Consuming alcohol in government facilities under the aforementioned guidelines is a privilege and all personnel should do so responsibly in every situation. Commanders must always ensure a safe and professional environment for all Airmen. **(T-1).**

3.1.5. Commanders will ensure the minimum age for purchasing, serving, selling, possessing, or drinking alcoholic beverages on AF installations as defined by Federal law and/or provisions of the state, territory, possession, or foreign country in which the installation is located. **(T-0).**

3.1.5. **(USAFA)** Only persons 21 years of age or older may purchase, possess (includes possession while traveling to and from authorized facilities in compliance with Colorado state law), and consume alcoholic beverages of any kind IAW **Attachment 2** (Added), of this supplement. Additionally, USAFA Cadet Candidates and USAFA Preparatory School Cadet Candidates of any age are not allowed to possess or consume alcohol on USAFA. Limited exceptions, as set forth in certain instructions, include but are not limited to, USAFA Cadet Wing AFCWI 36-3501 (Cadet Standards and Duties) and USAFA Preparatory School (USAFA/PS) Instruction 36-2 (Cadet Candidate Standards).

3.1.6. The sale of powdered alcohol is prohibited on AF installations. **(T-1).** Airmen under the prescribed legal age (by the law of the state, territory, possession, or foreign country) for consumption of alcoholic beverages are likewise prohibited from consumption (inhaling, ingesting or inoculation) of powdered alcohol, whether in liquid or powdered form. **(T-1).** Underage Airmen may not possess, sell, consume, or distribute powdered alcohol. **(T-1).** **Military members failing to obey the provisions in this paragraph are in violation of *Article 92 UCMJ*, *Failure to Obey Order or Regulation*.**

3.1.7. Servers and sellers, including volunteers and personnel at squadron events, of alcoholic beverages must verify the purchaser's age with a photo identification card (e.g. common access card, driver's license, passport, or family identification and privilege card). **(T-0).**

3.1.8. Adults must not provide alcoholic beverages to minors except in accordance with applicable state laws. **(T-0**). **Failure by military members to obey the provisions in this paragraph is a violation of *Article 92 UCMJ*, *Failure to Obey Order or Regulation*.**

3.1.9. Military personnel 18 years old or older may purchase, serve, sell, possess, and consume alcoholic beverages outside the United States, its territories, and possessions unless a higher drinking-age requirement exists in accordance with applicable status of forces or country-to-country agreements. A higher drinking age requirement (up to 21 years) may also be imposed based on the local situation as determined by the installation commander. **(T-3).** Coordination with host nation commander is required. **(T-3).** Establishment of a drinking age over the age of 21 years requires Air Force Services concurrence. **(T-1).**

3.1.10. As states enact new drinking-age laws, installation commanders must make corresponding changes for installation drinking-age guidance. **(T-0).**

3.1.11. The AF, consistent with mission needs, will cooperate with federal, state and local officials in the execution of the alcoholic beverage program; however, there is no legal obligation to submit to state or local control or regulation. **(T-0).**

3.1.12. Force Support, AAFES managers, and commanders at all levels should ensure proper safeguards and controls to protect the welfare of an intoxicated person.

3.1.13. Force Support managers selling or serving alcohol must implement an annual training program to familiarize beverage supervisors and servers with AF alcohol consumption policies. **(T-0).** The training must cover the principles of Dram Shop liability, bystander intervention methods for identifying intoxicated patrons, and procedures to prevent individuals from driving under the influence of alcohol. Completion of training must be documented in the employee's official personnel file. **(T-1).** AF nonappropriated fund employees working in AAFES facilities also receive training on "Techniques for Alcohol Management" which is documented in the employee's official personnel file.

3.2. Program Exceptions.

3.2.1. The installation commander, with legal review from AFSVC Office of Counsel, may approve exceptions to standard guidance if state and federal law permit. For example, when an entire unit marks a unique or non-routine military occasion on a military installation, the minimum drinking age for attendees at a particular unit gathering may be lowered. The minimum drinking age for the entire unit unique or non-routine military occasions must be 18 or above. **(T-0).** The minimum drinking age for non-service members at CONUS events may not be lower than 21 years of age.

3.2.2. The installation commander may not delegate the approval authority for exceptions to the minimum drinking age. **(T-1)**

3.2.3. The installation commander may approve exceptions to the installation alcohol policy for any combination of beverages, including the following common groupings (each approval document must specifically state the alcoholic beverages that the exception covers):

3.2.3.1. Beer only.

3.2.3.2. Low-alcoholic beverages with less than seven percent alcoholic content by volume.

3.2.3.3. Beer and wine only.

3.2.3.4. Beer, wine and distilled spirits.

3.2.4. The installation commander shall reevaluate the exceptions annually and send an information copy of the continued exceptions to AFSVC commander. **(T-2).**

3.3. Dram Shop Liability. Dram Shop is a legal theory of liability in many states which imposes financial liability upon the owner, operator and/or employees of any establishment for serving alcoholic beverages to persons who cause injuries or damages because of their intoxication. When an establishment continues to serve alcoholic beverages to a customer who has reached or appears to be reaching the point of intoxication and the customer subsequently departs and causes harm to themselves or others, the owner, operator and/or employees of the establishment may be held liable for damages. To protect the assets and interests of nonappropriated fund instrumentalities and the AF, personnel must adhere to the following:

3.3.1. Employees are prohibited from serving alcoholic beverages to individuals who appear intoxicated or close to being intoxicated. **(T-1).**

3.3.2. Servers of alcoholic beverages on AF installations must record their understanding of Dram Shop policy in the employee's official personnel file by signing underneath this statement: "I understand my responsibility under the Dram Shop theory of liability not to sell or serve alcoholic beverages to persons who appear to be intoxicated or nearing intoxication and not in complete control of their faculties." **(T-1).** AAFES prescribes the statement to be signed by all AAFES employees **(T-1).** Volunteers serving alcoholic beverages must also have Dram Shop awareness training and sign a statement identical to that signed by employees. **(T-1).**

3.4. Drunk and Drugged Driving Program. In accordance with DoDI 1330.21, *Armed Services Exchange Regulations*, paragraph E5.2, AAFES managers and DeCA managers should be familiar with the spirit and intent of all AF initiatives to eliminate drunk or drugged driving incidents involving patrons of installation Force Support, AAFES, and DeCA establishments, and support Force Support Squadron initiatives accordingly. **(T-0).**

3.5. Bystander Intervention Training. The Force Support Commander or director will ensure all Force Support personnel who serve alcohol receive bystander intervention training within 90 days of employment. Installation VPIs will assist in facilitation of bystander intervention training. Refer to AFI 90-5001, *Integrated Resilience* **(T-1).** Volunteers serving alcohol at Force Support events approved by the installation commander, either on or off the installation, must receive bystander intervention training prior to the event. **(T-1).**

3.6. Alcohol Operation Instructions. Operating instructions for activities serving alcoholic beverages must be used. **(T-3).** Operating Instructions should cover the following:

3.6.1. Importance of curtailing alcohol or drug influenced incidents.

3.6.2. Principles of Dram Shop liability, drunk and drugged driving program.

3.6.3. Importance of encouraging patrons to use a designated driver or buddy system.

3.6.4. The provisions of the alcohol deglamorization program.

3.7. Alcohol Deglamorization. In accordance with DoDI 1330.21, paragraph E5.2, installation commanders, tenant unit commanders, AAFES, DeCA, and Force Support commanders or directors and managers at all levels must make every effort to deglamorize alcohol. **(T-0).** To deglamorize alcohol, installation commanders will ensure:

3.7.1. Force Support programs serving alcoholic beverages do not promote excessive drinking. **(T-1).**

3.7.2. Force Support programs serving alcoholic beverages also offer nonalcoholic beverages. **(T-1).**

3.7.3. The hours during which alcoholic beverages (dispensed and pre-packaged) are sold by the drink on the installation is established in writing. **(T-1).**

3.7.4. The hours of operation for alcoholic beverage sales are coordinated between Force Support, AAFES and DeCA to provide reasonable service, meet local conditions and recognize the unique mission of military personnel. **(T-1).**

3.7.5. Ensure there is no issuance of coupons for reduced prices on alcoholic beverages. **(T-1).**

3.7.6. Ensure alcoholic beverages are not provided free of charge except for promotional tasting as approved by the installation commander. **(T-1).**

3.8. Social Hours. The following social hour guidance applies at all AF installations. Social hour is a designated period in which alcoholic beverages are offered at reduced price. All Force Support programs and AAFES stores must observe the following procedures when offering alcoholic beverages, by the drink, at reduced prices for social hours: (**T-3).**

3.8.1. Keep designated social hours periods to 10 hours or fewer per week and no more than two hours per day.

3.8.2. Make food available for purchase.

3.8.3. Reduce prices no more than 50 percent except for beverages offered as complimentary with a meal.

3.8.4. Do not serve two-for-one (or higher ratios) drinks.

3.8.5. The installation commander may provide waivers on a case-by-case basis; the waiver authority cannot be delegated.

3.9. Bar Operations. When opening bars Force Support programs will:

3.9.1. Not operate pro rata bars that require non-drinkers to share the cost of alcoholic beverages unless a pay-as-you-go bar is not practical or all the members of a group volunteer to share the cost. **(T-3).**

3.9.2. Not include the cost of alcoholic beverages in a package price for a meal, party or other function (includes dining-in or out) without offering a comparable nonalcoholic option at the same or reduced prices. **(T-3).**

3.9.3. Not use terms that glamorize alcoholic beverages or their consumption ("sick calls," "attitude adjustment hours," etc.). **(T-3).**

3.9.4. Not use the term “happy hour.” Use the term "social hour" in all written advertisements and provide a range of programs that include more than just reduced prices on alcoholic beverages. **(T-3).**

3.9.5. Reduce prices for nonalcoholic beverages when reducing prices for alcoholic beverages. **(T-3).**

3.9.6. Make a complimentary alcoholic beverage part of a meal only in appropriate cases (for example, with birthday or anniversary meal programs). In all cases, make nonalcoholic beverages available as an optional complimentary drink. **(T-3).**

3.9.7. Prohibit drinking contests. Do not use "last call" or other countdown events designed to promote last-minute sales. **(T-3).**

3.9.8. Do not increase the alcoholic content of a drink beyond the standard bar recipe without increasing the price. **(T-3).**

3.9.9. Complimentary nonalcoholic beverages should be offered in association with a designated driver program.

3.9.10. Establish a standard shot size not to exceed 1.5 ounces.

3.10. Registration and Taxation. Force Support programs that buy and sell alcoholic beverages must observe federal regulations. **(T-0).** Information and forms may be obtained for wholesale or retail alcoholic beverage permits and tax stamps from the Department of the Treasury, Internal Revenue Service, Bureau of Alcohol, Tobacco, Firearms and Explosives, 99 New York Avenue, NE, Washington, DC 20226.

3.10.1. In the United States, a Force Support program cannot transfer alcoholic beverages to another Force Support program for reimbursement unless the transferring Force Support program has a Federal Liquor Wholesaler's Occupation Tax Stamp issued by the Bureau of Alcohol, Tobacco, Firearms and Explosives. **(T-0).**

3.10.2. A Force Support Program that transfers alcoholic beverages to another Force Support program on a reimbursable basis must post a sign that can be seen from outside the building that reads "Wholesale Liquor Distributor." **(T-0).**

3.10.3. In the United States, each Force Support program that sells retail alcoholic beverages must be registered with the Alcohol and Tobacco Tax and Trade Bureau. **(T-0).** AFSVC maintains a central registration for each Force Support Program. Only one registration is needed regardless of how many annexes or retail outlets the Force Support program operates on the installation. However, a Force Support program operating retail outlets at a geographically separated off-installation location (for instance, at an off-installation recreation area) must have a separate registration for each off-installation outlet. **(T-0).**

3.10.4. A Force Support program that holds a valid federal wholesaler's occupation tax stamp does not need a federal retail occupation tax stamp.

3.10.5. The Force Support program must provide Bureau of Alcohol, Tobacco, Firearms and Explosive officers with purchase orders, invoices, stock record cards, inventories, and other related documents upon request. **(T-0).**

3.10.6. If a Force Support Program contracts with a concessionaire to sell alcoholic beverages at Force Support events, the concessionaire operator is required to purchase, at no cost to the government, a Federal Liquor Wholesaler's or Retailer’s Occupation Tax Stamp issued by the Bureau of Alcohol, Tobacco, Firearms and Explosives. **(T-0).**

3.10.7. Force Support Programs are exempt from all non-federal regulations and direct state and local taxes. If a state or local government attempts to tax or regulate alcohol purchases or sales by a non-AAFES nonappropriated fund instrumentality, contact AFSVC Office of

Counsel (AFSVC/JA), 2261 Hughes Avenue, Joint Base San Antonio-Lackland, Texas 78236-9854, for assistance in resolving the matter with the state or local authorities. AAFES may also request the assistance of the Commander, AAFES, P.O. Box 660202, Dallas Texas 75266 to resolve any attempt to tax or regulate an AAFES activity.

3.11. Breath analyzers. Breath analyzers are devices for estimating blood alcohol content from a breath sample. The use of any type of breath analyzers in Force Support programs where alcohol is served or sold is prohibited. **(T-1).**

Chapter 4

SERVING OR SELLING ALCOHOLIC BEVERAGES FOR ON-PREMISES CONSUMPTION

4.1. Governing Criteria. Force Support programs are the primary providers of alcoholic beverages for on-premises consumption. No other installation organization or Non-Federal entity is permitted to sell alcoholic beverages unless contracted through Force Support. **(T-1).** The installation commander determines in writing which Force Support programs, AAFES, and DeCA facilities and locations sell alcoholic beverages to authorized adults by the drink or in single-serving containers. **(T-1).** Force Support programs may also contract with concessionaires to sell alcoholic beverages at Force Support events.

4.1.1. The AF prohibits alcoholic beverages in any youth program building and outdoor area, or at any function sponsored by or for the youth program. **(T-1).** Refer to AFI 34-144, *Child and Youth Programs*.

4.1.2. Alcoholic beverages for on-premises consumption in all lodging facilities is authorized. If lodging does not provide this service, another Force Support program may do so. Lodging staff must have documented Dram Shop and bystander intervention training for all staff selling and/or serving alcoholic beverages. Refer to **paragraph 3.3.2**, and **3.5** Lodging must not operate bars **(T-1),** but may sell the following kinds of packaged alcohol:

4.1.2.1. Distilled spirit miniatures (or, if not available, 200 milliliter sizes).

4.1.2.2. Wine coolers and other premixed, commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume (not to exceed 375 milliliters).

4.1.2.3. Wine (no larger than 1 liter containers).

4.1.2.4. Beer (by the bottle or can).

4.1.3. AAFES may sell beer, wine and premixed commercial drinks less than seven percent alcoholic content by volume for on-premises consumption.

4.1.4. AF medical and religious facilities may dispense alcoholic beverages in accomplishing their mission.

4.1.5. AAFES operated name brand fast food outlets may not regularly sell alcoholic beverages. **Exception:** The installation commander may allow:

4.1.5.1. AAFES operated name brand fast food outlets to sell beer, wine coolers and premixed commercially packaged alcoholic beverages with less than seven percent alcohol content by volume if the chain offers the same products in the local community.

4.1.5.2. AAFES operated full service restaurants to sell wine and beer by the glass with meals.

4.1.6. An AAFES facility that is not authorized to sell alcoholic beverages may request a waiver from Air Force Director of Services. The request should explain how permitting the facility to sell alcoholic drinks is beneficial to both consumers and the AF.

4.1.7. Installation restaurants and other facilities supported by a civilian welfare fund may sell the following kinds of drinks for on-premises consumption when approved by the installation commander:

4.1.7.1. Beer (by single serving size).

4.1.7.2. Wine coolers (by single serving size).

4.1.7.3. Premixed, commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume.

4.1.7.4. Wine and beer by the glass with meals.

4.2. Alcoholic Beverage Consumption Locations. Alcoholic beverages may be consumed on installation and other AF off-installation related facilities or areas as designated in writing by the installation commander. Approval authority must not be delegated. **(T-1). Exception:** This authority may be delegated to the vice installation commander only in the absence of the commander.

4.2. **(USAFA)** The activities, areas, and facilities in which alcoholic beverages (i.e. distilled spirits, malt beverages (beer/ale), and wine) may be sold, possessed, or consumed are listed in **Attachment 1**, *Authorized Facilities for Sale and Consumption of Alcoholic Beverages at the Academy*. The sale or consumption of alcoholic or malt beverages in areas not reflected in **Attachment 2**, are prohibited unless approved by the 10 ABW/CC by exception.

4.2.1. **(Added-USAFA)** 10 ABW/CC approves the consumption and sale, if applicable, of alcohol from 1000-0200. This time remains dependent on who the event is tailored for and location and can be adjusted at ME request and 10 ABW/CC approval. Alcohol consumption within squadron or unit government facilities is permitted for Airmen and their guests during ME commander-approved sessions, celebrations or social events. Alcohol consumption approval can be delegated to ME Vice or Deputy Commander. Any organization or private party holding an event on USAFA property, that serves or consumes alcohol, must have at least one permanent party active duty person review and sign the Dram Shop Theory of Liability form and will assign designated driver/s available during the event as well as initiatives to prevent or intervene when there is a risk of misconduct. The "Dram Shop" is a legal theory of liability, created by statute, which imposes upon those serving alcoholic beverages the duty to refuse to serve additional alcoholic beverages to a person who reaches or appears to be reaching the point of intoxication. It is the responsibility of the event planner or sponsor serving alcoholic beverages to ensure the Drunk and Drugged Driving Program and Bystander Intervention Programs are enforced. If an intoxicated individual subsequently departs the event and causes harm to themselves or others, the sponsor and establishment can be held liable for damages. Responsible persons must comply with the intent of the "Dram Shop," not only to prevent a claim against the AF and themselves, but more importantly, to prevent an unnecessary injury or loss of life. The event sponsor is required to assign designated drivers (1 per 20 guests at a minimum) for the event, and they must list these drivers on **Attachment 3**. Responsibilities are acknowledged by the sponsor by reviewing and signing the *USAFA Alcohol Request, Designated Drivers Program and Dram Shop Theory* letter (**Attachment 3**). The event is approved by a Group or ME commander utilizing the letter template at

Attachment 4. Upon approval, a copy of the signed letter will be sent to 10 FSS and maintained for one year.

4.3. Alcoholic Beverage Consumption within a Squadron or Unit. Consumption of alcohol within a squadron or unit must follow the guidance in **Chapter 3. (T-2).** Alcoholic beverage consumption within a squadron or unit may be considered for approval in a designated space on a limited basis for Airmen and their adult guests during the following enumerated functions: hail and farewell recognition, promotion and retirement celebrations, final-flight celebrations, squadron or unit heritage anniversary celebrations, family day celebrations, and picnics. Other functions or events may be approved by the installation commander upon request if the event is determined to be in the best interest of the AF and the installation's mission. These requests must have installation commander written approval. **(T-1).** The requestor (squadron or unit commander, civilian leader or equivalent authority) should include the following:

4.3.1. A plan how alcoholic beverages will not be consumed by, available or provided to individuals under the legal drinking limit of local laws. **(T-1)**

4.3.2. Confirmation alternative non-alcoholic beverages will be offered at times and food and snacks available to users of the room. **(T-1)**

4.3.3. Develop and submit a safe transportation plan for Airmen and their adult guests who may consume alcoholic beverages while attending the approved function.

4.3.4. Date(s) of the event and the time alcohol is available. Having sustained ongoing events featuring alcohol is not authorized. **(T-1).** Designating an entire building when multiple units share the building is not authorized **(T-1).**

4.3.5. Confirmation servers will complete Dram Shop and bystander intervention training. This training must be documented. **(T-1).**

4.3.6. Why the proposed event is in the best interest of the AF and installation mission.

4.3.7. Provide explanation of how alcohol will be deglamorized at the event. Refer to **paragraph 3.7**

4.4. Selling and Dispensing Alcoholic Beverages – Squadron or Unit Location. When approving a request to serve and consume alcoholic beverages in on-installation areas (not designated for this purpose) the installation commander should require the alcoholic beverages be sold and dispensed only by an authorized Force Support or AAFES activity. The use of breathalyzers by hosting squadron or unit are prohibited. **(T-1).** Refer to **paragraph 3.11**

4.5. Vending Machines. Do not use vending machines to sell alcoholic beverages in the United States, its territories, or possessions. **(T-0).**

4.5.1. Outside the United States, its territories and possessions, installation commanders may approve vending machine sales of beer in transient quarters, dormitories and dining facilities for on-premises consumption.

4.5.2. AAFES operates their own overseas vending machine program. An installation supplement must prescribe the following minimum controls for facilities with vending machines **(T-0)**:

4.5.2.1. Hours of operation that comply with mission requirements.

4.5.2.2. Supervision of machines during operating hours.

4.5.2.3. Authorized use of the machines.

4.5.2.4. Safeguarding of machines during non-operating hours.

4.6. Private Organizations. Private Organizations cannot sell or serve alcoholic beverages on AF installations **(T-1)**.

4.6. **(USAFA)** IAW AFI 34-219, 30 April 2019, private organizations (PO) cannot sell or serve alcoholic beverages on AF installations. **EXCEPTION**: At the discretion of the 10 ABW/CC, Non-appropriated Fund Instrumentality (NAFI) operated Morale Welfare and Recreation (MWR) programs may secure the aid of volunteers or persons providing gratuitous services to assist in the sale of MWR-procured alcoholic beverages. NAFI operated MWR programs may also enter into contractual agreements with Booster Clubs associated with military units or other on-installation PO(s), under which the military unit Booster Club(s) or PO(s) provide qualified personnel to assist the NAFI in selling alcoholic beverages at MWR events in exchange for a fee. Fees paid to military unit Booster Clubs or PO(s) are deposited into the appropriate accounts; units will not require Airmen to participate in the event. This may also apply to co-sponsored events, such as air shows, open houses or other special installation events. All personnel assisting the NAFI's MWR program to sell alcoholic beverages at such events receive appropriate training as outlined within AFI 34-219, sections 3.3., 3.4., 3.5., and 3.7.

4.6.1. At the discretion of the installation commander, Force Support programs may secure the aid of volunteers or persons providing gratuitous services to assist in the sale of Force Support procured alcoholic beverages. Force Support programs may also enter into contractual agreements with spouses clubs or other private organizations associated with military units or other on-installation private organizations, under which the private organization provides qualified personnel to assist the Force Support program in selling alcoholic beverages at Force Support events in exchange for a fee. Units will not require Airmen to participate in the event. **(T-3).** This arrangement may be used during family day events, Air Force Open Houses and other community relations. All personnel assisting the Force Support program to sell alcoholic beverages at such events will receive appropriate training as outlined within this instruction, **Paragraphs 3.1.4 and 3.5**. **(T-1).**

4.6.1. **(USAFA)** Air Force Academy Athletic Corporation (AFAAC) and Air Force Academy Athletic Association (AFAAA) conduct revenue-generating activities to support the USAFA athletic program pursuant to 10 U.S.C. 9462. AFAAC and AFAAA receive revenue from managing fund-generating events, which include charging admission and conducting retail, food, and beverage concessions for such events. Events where alcoholic beverages will be sold, served, and consumed are identified in **Attachment 2** and designated, only by the 10 ABW/CC, to be sold exclusively by the 10 FSS. The 10 FSS will share revenue from alcohol sales with AFAAC and AFAAA managed fund-generating events IAW with the established Memorandum of Understanding (MOU) or Memorandum of Agreement (MOA). This arrangement will be generated to provide benefit to both activities and remain consistent with AFI 34-219.

4.6.2. **Exception:** Alcoholic beverages may be consumed and shared among adult members of a private organization (and their adult guests) in a potluck fashion at private organization social (non-business) events.

4.7. Air Force Sponsored Aircraft. Authorized distinguished visitors and their adult guests may consume alcoholic beverages on AF sponsored aircraft. Submit a log to AFSVC for headquarters oversight. If alcoholic beverages are sold, the Force Support unit must create a special nonappropriated fund instrumentality to manage the funds in accordance with AFMAN 34-201, *Use of Nonappropriated Funds (NAFs)*. **(T-1).**

4.8. Unauthorized Beverages.

4.8.1. Personal supplies of alcoholic beverages are not authorized in Force Support facilities or on the grounds of Force Support programs selling or serving alcohol. **(T-3).**

4.8.2. The sale of pre-mixed and packaged alcoholic energy drinks in Force Support activities is prohibited. **(T-3).**

4.9. Food 2.0 and other Concessionaire Contracts.

4.9.1. The contractor is required and responsible for executing their beverage program in accordance with this instruction. **(T-1).** Moreover, contractors are solely responsible for insuring their operations are in full compliance with alcohol guidelines and regulations associated with the maintenance of nonappropriated fund instrumentalities or contractor's alcohol license at each AF installation.

4.9.2. Any agreement entered with a contractor under a concessionaire contract must provide remuneration to the Force Support program. **(T-1).**

4.9.3. The Food 2.0 contractor is required to follow registration and taxation policy as detailed in **paragraph 3.10**.

4.9.4. Contractor employees must have all training as detailed in **paragraph 3.5**. Upon a Force Support program request, the contractor shall provide proof of relevant employees' training and certification.

Chapter 5

SELLING ALCOHOLIC BEVERAGES FOR OFF-PREMISES CONSUMPTION

5.1. Off-Premises Alcohol Sales. AAFES is designated as the primary manager of packaged alcoholic beverage (Class Six) stores and the prime wholesaler of alcoholic beverages. Refer to Air Force Joint Instruction 34-203.

5.2. Force Support Programs Non-Compete. Force Support units and other AF programs must not compete with AAFES to sell packaged alcoholic beverages. **Exception:** Lodging, as provided in **paragraph 4.1.2**. **(T-0).**

5.2.1. When approved by the installation commander, Force Support programs may sell beer, wine coolers, and other commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume for off-premises consumption, but should restrict these sales to time periods when AAFES operated retail outlets on the installation are closed. Force Support programs must not offer packaged alcohol for lower prices than AAFES charges for the same item. **(T-1).**

5.2.2. Packaged beer or wine sales that Force Support offers as part of a catering contract or takeout food and beverage operation are exempt from this restriction. Takeout operations normally can sell no more than 12-pack containers and similarly packaged products to include keg beer.

5.2.3. Force Support programs may sell bottled wines and champagnes listed on the dining room wine list for off-premises consumption under these conditions:

5.2.3.1. Force Support programs may not set up rooms separate from the dining room to display or sell for off-premises consumption.

5.2.3.2. Force Support programs ensure that dining room list prices comply with the pricing policy detailed in **paragraph 5.2**. **(T-3).**

5.2.4. Force Support programs and Class Six outlets must ensure that package alcohol sales are made only to patrons authorized to use the Force Support programs or Class Six store. **(T-0).** Refer to **paragraph 5.4**

5.2.5. Authorized AF alcohol resale stores selling alcohol for off-premises consumption must inform patrons of the maximum quantities that an individual may legally transport into or through the state, district, territory, or country where the installation-of-purchase is located. **(T-3).**

5.3. Establishing Class Six Outlets. In the United States, installations may operate Class Six outlets when approved by the Secretary of the Air Force. **(T-1).** AFI 34-211(I) contains procedures for establishing a Class Six store. In foreign areas overseas, installations shall operate Class Six outlets where there is no contradictory status-of-forces or other country-to-country or local government agreement. **(T-0).** AFSVC commander with Major Command concurrence approves such operations if requested by AAFES.

5.4. Authorized Patronage. Inter-service publication AFI 34-211(I) contains AAFES Class Six patronage restrictions and identification procedures. Authorized patronage in overseas areas must comply with the provisions of the status-of-forces or other country-to-country agreement. **(T-0).**

5.5. Controlling Sales. Authorized patrons will not sell, exchange, or otherwise divert packaged alcoholic beverages to unauthorized personnel or for purposes that violate federal, state or local laws, or status-of-forces or other country-to-country agreements. **(T-0).**

5.6. Pricing. Force Support programs ensure their prices for packaged alcoholic beverages are not lower than those charged by AAFES **(T-1)** and are substantially uniform with other military service outlets in the same geographic area.

5.7. Wholesale Sales. AAFES is the prime wholesaler of alcoholic beverages on AF installations **(T-0)** and may provide all requested alcoholic beverage products to authorized Force Support and non-appropriated fund supported installation activities. If AAFES has stock shortages, activities selling alcoholic beverages by the drink should have first priority.

5.7.1. AAFES sets wholesale prices based on the landed cost. Landed cost includes the purchase price adjusted for vendor and invoice discounts, plus costs incurred to bring goods to the point of sale. AAFES assesses no additional transportation, warehousing distribution or handling charges and other costs up to the destination. AAFES should consult with the AFSVC commander if exceptional conditions (national disasters, transportation strikes, etc.) arise that affect wholesale prices.

5.7.2. Force Support programs and other nonappropriated fund supported activities may purchase alcoholic beverages from sources other than AAFES, when more competitive prices exist from a commercial supplier.

5.8. Labeling Packaged Alcoholic Beverages. 27 USC § 213, *Alcoholic Beverages Labeling Act of 1988*, requires all packaged containers of alcoholic beverages for resale on military installations bear this statement: "GOVERNMENT WARNING: (1) According to the Surgeon General, women should not drink alcoholic beverages during pregnancy because of the risk of birth defects. (2) Consumption of alcoholic beverages impairs your ability to drive a car or operate machinery and may cause health problems." **(T-0).** This requirement also applies to foreign packaged beverages that AF activities serve or sell overseas. The selling activity's manager must label all beverages that the producer doesn't label. **(T-0).** Follow these labeling requirements.

5.8.1. Design all labels to make the health warning statement readily legible under ordinary conditions on a contrasting background. **(T-0).**

5.8.2. Containers of 237 milliliters (8 ounces) or less: must be labeled with 1 millimeter (0.04 inches) sized lettering. **(T-0).**

5.8.3. Containers of more than 237 milliliters (8 ounces): must be labeled with 2 millimeters (0.08 inches) sized lettering. **(T-0).**

5.8.4. Affix labels on the container so they cannot be removed without thorough application of water or other solvents. **(T-0).**

SHON J. MANASCO
Assistant Secretary of the Air Force
Manpower and Reserve Affairs

(USAFA)

BRIAN S. HARTLESS, Colonel, USAF
Commander, 10th Air Base Wing

Attachment 1

GLOSSARY OF REFERENCES, ACRONYMS, ABBREVIATIONS, AND TERMS

References

AFPD 34-1, *Air Force Services,* 11 Oct 2018

DoDI 1015.10, *Military Morale, Welfare, and Recreation (MWR) Programs*, 6 May 2011

AFMAN 33-363*, Management of Records*, 01 March 2008

AFI 33-360, *Publications and Forms Management*, 01 Dec 2015

AFJI 34-203, *Board of Directors, Army and Air Force Exchange Service (AAFES)*, 15 May 1996

AFI 1-2, *Commander's Responsibilities*, 08 May 2014

10 USC § 892, *Article 92, Failure to Obey Order or Regulation*

DoDI 1330.21, *Armed Services Exchange Regulations*, 4 February 2003

AFI 90-6001, *Sexual Assault Prevention and Response (SAPR) Program,*21 May 2015

AFI 34-144*, Child and Youth Programs*, 2 March 2016

AFMAN 34-201, *Use of Nonappropriated Funds (NAFs)*, 28 September 2018

AFI 34-211(I), *Army and Air Force Exchange Service General Policies*, 11 Jul 2017

27 USC § 213, *Alcoholic Beverages Labeling Act of 1988*, 18 November 1988

AFI 65-107, *Nonappropriated Funds Financial Management Oversight Responsibilities*, 13 June 2018

Prescribed Forms

None

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AAFES—Army and Air Force Exchange Services

AF—Air Force

AF/A1S—Air Force Directorate of Services

AFI—Air Force Instruction

AFJI—Air Force Joint Instruction

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

AF/RE—Chief Air Force Reserve

AFSVC—Air Force Services Center

DeCA—Defense Commissary Agency

DoD—Department of Defense

DODI—Department of Defense Instruction

MWR—Morale, Welfare and Recreation

OPR—Office of Primary Responsibility

USC—Untied States Code

Terms

Adult—Personnel 18 to 21 years old are adults if so defined by the law of the state, territory, possession, or foreign country where the installation is located. If a state, territory, possession, or foreign country prohibits alcoholic beverages or has no prescribed drinking age, an adult is a person 18 years old or older.

Alcoholic Beverages—Potable beverages containing any amount of ethyl alcohol (i.e. beer, wine, and distilled spirits)

Civilian Welfare Fund—A fund established to provide adequate morale, welfare, and recreation programs, services and facilities for the Federal civilian workforce.

Class Six Store or Annex—The building or space within a building that serves as the main or supplementary point-of-sale for packaged (off-the-shelf) alcoholic beverages for off-premises consumption.

Container—The innermost sealed container, regardless of the packaging material, in which the bottler places an alcoholic beverage for commercial sale.

Dram Shop Theory—A theory of legal liability which imposes liability on servers of alcoholic beverages (facility owner, operator, or employee) for serving alcoholic beverages to persons who cause injuries or damages because of their intoxication.

Minor—An individual who does not meet the minimum age requirements for lawfully consuming alcohol.

Name Brand Fast Food Outlet—A fast food establishment easily identifiable as a part of an off-installation fast-food chain.

Nonalcoholic Beverage—A beverage containing no alcohol.

Nonappropriated Fund Instrumentality—AFI 65-107, *Nonappropriated Funds Financial Management Oversight Responsibilities*, defines a nonappropriated fund instrumentality is a fiscal entity of the United States Government that is supported in whole or in part by nonappropriated funds. Nonappropriated fund instrumentalities are not incorporated under the laws of any state or the District of Columbia, but have the legal status of an instrumentality of the United States and have the same immunities and privileges as the United States Government in the absence of specific Federal Statute.

(a) Federal agencies create nonappropriated fund instrumentalities and regulate their activities, but they are not federal agencies or government corporations. Although a nonappropriated fund

instrumentality can be an integral DoD organizational entity that performs essential government functions within DoD, it operates independently to provide or assist DoD organizations supporting military personnel and authorized civilians. As a fiscal entity, a nonappropriated fund instrumentality maintains custody and control over its funds and is responsible for exercising care relative to administering, safeguarding, preserving, and maintaining those resources made available to carry out functions.
(b) Nonappropriated fund instrumentalities function under the umbrella of DoD, but are not considered "federal reporting entities" for the purpose of financial statement reporting. Nonappropriated fund instrumentalities financial statements are not in any manner associated with DoD financial statements. Nonappropriated fund instrumentalities use proceeds obtained from business operations and activities in providing a support function to DoD.

Powdered Alcohol—Dehydrated alcohol that when reconstituted with water turns into vodka, rum, or another spirit.

Routine—Standard practice or regular occurrence

Social hour—Designated period in which alcoholic beverages are offered at a reduced price

Attachment 2 (Added-USAFA)

AUTHORIZED FACILITIES FOR SALE AND CONSUMPTION OF ALCOHOLIC BEVERAGES ON USAFA

FACILITY	SALE			CONSUMPTION		
	Distilled Spirits	Malt Bev (Beer/Ale)	Wine	Distilled Spirits	Malt Bev (Beer/Ale)	Wine
	On Premise	On Premise	On Premise	On Premise	On Premise	On Premise
Falcon Club	Yes	Yes	Yes	Yes	Yes	Yes
Bowling Center	Yes	Yes	Yes	Yes	Yes	Yes
Haps Cadet Lounge	Yes	Yes	Yes	Yes	Yes	Yes
Arnold Hall	Yes 1 & 3	Yes 1 & 3	Yes 1 & 3	Yes	Yes	Yes
Golf Course	Yes	Yes	Yes	Yes	Yes	Yes
AAFES Complex and Shoppette	No 6	No 6	No 6	Yes 5	Yes 5	Yes 5
Cadet BX	No	No	No	No	No	No
Fairchild BX	No	No	No	No	No	No
Picnic Area Pavilions	Yes 1	Yes 1	Yes 1	Yes	Yes	Yes
Lodging	Yes	Yes	Yes	Yes	Yes	Yes
Farish Recreation Area	Yes	Yes	Yes	Yes	Yes	Yes
Cadet Athletic Area (AD) (Fields and Clune Arena)	Yes 1 & 3	Yes 1	Yes 1	Yes 3	Yes 3	Yes 3
Youth Athletic Fields	No	No	No	No	No	No
Airman Dorms	No	No	No	Yes	Yes	Yes
Cadet Dorms	No	No	No	No	No	No
Prep School Dorms	No	No	No	No	No	No
Installation Housing	No	No	No	Yes	Yes	Yes
Cadet Lodge	Yes 1	Yes 1	Yes 1	Yes 2 & 7	Yes 2 & 7	Yes 2 & 7
Military Affiliated Organizations	No	No	No	No 7	No 7	No 7
Falcon Stadium	Yes 1	Yes 1	Yes 1	Yes	Yes	Yes

continued

	SALE For on premise consumption	CONSUMPTION In the facility and/or on premise

	Distilled Spirits	Malt Bev (Beer/Ale)	Wine	Distilled Spirits	Malt Bev (Beer/Ale)	Wine
	On Premise	On Premise	On Premise	On Premise	On Premise	On Premise
Falcon Stadium Parking	No	No	No	Yes 3	Yes 3	Yes 3
Falcon Stadium Press Box	Yes 1	Yes 1	Yes 1	Yes	Yes	Yes
Blue & Silver Club (Falcon Stadium)	No	No	No	Yes 3, 4 & 8	Yes 3, 4 & 8	Yes 3, 4 & 8
Falcon Room (Clune Arena)	Yes 1	Yes 1	Yes 1	Yes 1, 3, 4 & 8	Yes 1, 3, 4 & 8	Yes 1, 3, 4 & 8
Mitchell Hall	Yes 1	Yes 1	Yes 1	Yes	Yes	Yes
Doolittle Hall (AOG)	Yes 1	Yes 1	Yes 1	Yes 1	Yes 1	Yes 1
Polaris Hall	Yes 1	Yes 1	Yes 1	Yes 1	Yes 1	Yes 1
Fairchild Hall	No	No	No	Yes 2 & 7	Yes 2 & 7	Yes 2 & 7
Squadron Special Events *	No	No	No	Yes 2 & 7	Yes 2 & 7	Yes 2 & 7
Gen Benjamin O. Davis Jr. Airfield	No	No	No	Yes 7	Yes 7	Yes 7

NOTES:

1. When 10 FSS is responsible for the sale and service of alcohol.
2. Special social functions involving cadets and/or cadet candidates will be coordinated through the appropriate ME chain of command.
3. Only during scheduled games or special events.
4. Consumption allowed in the Falcon Stadium Blue & Silver Club and Clune Arena Falcon Room only.
5. For tasting events only.
6. Sale of alcohol for off-premise consumption is authorized at the BX and Shoppette only.
7. Alcoholic consumption within a squadron or unit may be considered for approval on a limited basis for Airmen and their guests during the following enumerated functions: Hail/Farewell recognition, promotion and retirement celebrations, fini-flight celebrations, squadron or unit heritage anniversary celebrations, family day celebrations, picnics and other functions/events upon request. Event approval authority is delegated to ME/Group Commanders. Consumption and sale of alcohol is only authorized by the 10 ABW/CC in

areas outlined in Attachment 2.

8. Falcon Stadium Blue & Silver and Clune Arena Falcon Room may conduct limited sponsor-provided tastings.

***** ME Commanders will use the letter at Attachment 4 IAW this instruction when approving these events.

Attachment 3 (Added-USAFA)

USAFA ALCOHOL REQUEST, DESIGNATED DRIVERS PROGRAM AND DRAM SHOP THEORY

1. INTENT AND GUIDANCE: The intent of this letter is to permit the consumption of alcoholic beverages by Airmen, guests, and cadets on a limited basis. The sponsor will discourage behavior associated with excessive drinking and avoid inappropriate and disorderly conduct. Airmen and cadets under the proscribed legal age (21 for the state of Colorado) are prohibited from consuming alcohol, whether in liquid or powdered form. Sponsors will ensure their event possesses a culture of professionalism where people do not consume alcohol during professional time or while performing official duties. Alcohol may only be consumed, when approved, in government facilities at commander-approved times and locations, ensuring mission and unit readiness are not negatively affected. Consuming alcohol in government facilities under the aforementioned guidelines is a privilege and all personnel should do so responsibly in every situation. **Alcohol may NOT be consumed by members while performing official duties IAW AFI 34-219.**

2. IDENTIFICATION: Individuals must present an identification card prior to being served alcohol. Anyone who is under the age of 21 years will be denied alcohol. Cadet candidates of any age are not allowed to possess or consume alcohol on USAFA, with limited exceptions.

3. DEFINITION OF DRAM SHOP: The Dram Shop Theory Liability creates a legal requirement that sponsors who host an event that provides alcoholic beverages for consumption will not serve alcohol, in any form, to a person who appears to be intoxicated or nearing intoxication and not in complete control of their faculties. Dram Shop liability statutes under existing Colorado law states that serving alcohol to an intoxicated person or serving alcohol to a minor can result in civil liability. If an intoxicated individual subsequently departs the event and causes harm to themselves or others, the sponsor and establishment can be held liable for damages. Responsible persons must comply with the intent of the Dram Shop, not only to prevent a claim against the AF and themselves, but more importantly, to prevent an unnecessary injury or loss of life.

4. APPLICATION: Dram Shop liability applies to all personnel offering alcoholic beverages for consumption.

a. The event sponsor is responsible for making a determination that a customer or patron should no longer be served alcohol. If the individual requesting an alcoholic beverage is intoxicated or nearing intoxication and not in complete control of their faculties, service must be refused. In addition, transportation to the individual's residence will be provided by a designated driver (listed below).

b. An individual who arrives intoxicated and requests more alcohol, or an individual who drinks to the point of intoxication, will be denied alcohol. It is the duty of the sponsor to deny service to any person who appears to be intoxicated or nearing intoxication and not in complete control of their faculties at all times.

5. DEFINITION OF BYSTANDER INTERVENTION: Bystander intervention is the act of feeling empowered and equipped with the knowledge and skills to prevent sexual violence. Bystander intervention doesn't have to jeopardize the safety of the bystander. Bystander intervention and bystander education programs teach potential witnesses safe and positive ways to prevent or intervene when there is a risk for sexual violence. This approach gives community members specific roles they can use in preventing sexual violence, including naming and stopping situations that could lead to sexual violence before it happens, stepping in during an incident, and speaking out against ideas and behaviors that support sexual violence. It also gives individuals the skills to be an effective and supportive ally to survivors after an assault has taken place.

6. EVENT INFORMATION

Venue: _____ Date: _____

Est. Number of Guests: _____ Times: _____

Types of alcohol to be served/made available:
_____

Names of Designated Drivers:
_____
_____
_____ I understand my responsibility under the Dram Shop theory of liability not to sell or serve alcoholic beverages to persons who appear to be intoxicated or nearing intoxication and not in complete control of their faculties.

_____
_____

Signature of sponsor/responsible individual (must be permanent party, active duty personnel only)

_____
_____

Print name of sponsor/responsible individual Date

Attachment 4 (Added-USAFA)

MISSION ELEMENT COMMANDER APPROVAL LETTER

MEMORANDUM FOR [*Requesting Unit/Mission Element Subordinate Unit*]

FROM: MISSION ELEMENT COMMANDER or VICE/DEP OFFICE SYMBOL

SUBJECT: Approval for Serving Alcohol at the [*Location, Date*]

1. Your request to serve alcoholic beverages at the EVENT NAME in the LOCATION on DATE is approved. The consumption of malt beverages, distilled spirits, and wine are permitted at the LOCATION provided you strictly adhere to the Dram Shop Theory of Liability and not serve alcoholic beverages to persons who are under the age of 21 or who appear to be near intoxication and not in complete control of their faculties. All alcohol must be given free-of-charge and not sold, and no alcohol may be consumed off the premises.

2. With this approval, you are required to ensure your attendees have safe transportation alternatives should anyone find themselves in a situation where they are not fit to drive.

MSN ELEMENT CC or VICE/DEP SIG BLOCK
Commander or Vice/Deputy

cc:
10 FSS/CL